

SYNTHETIC TEST DOCUMENT

This agreement is filler written solely to test document handling. Only the clause reproduced under Article XIV is taken from this project's existing sample contract; everything else on these pages is invented boilerplate and does not describe any real company or transaction.

JOINT VENTURE AND OPERATING AGREEMENT

This Joint Venture and Operating Agreement (this "Agreement") is entered into between the parties identified in Schedule A (each a "Party" and together the "Parties") in respect of the refining and processing venture described in Schedule B (the "Venture").

ARTICLE I - DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, capitalised terms have the meanings given to them where they first appear, and any term not otherwise defined has the meaning customarily given to it in the industry in which the Venture operates. References to an Article or Section are references to an Article or Section of this Agreement.

1.2 The headings in this Agreement are inserted for convenience only and do not affect its construction. Words importing the singular include the plural and vice versa, and words importing one gender include every gender.

ARTICLE II - FORMATION AND PURPOSE

2.1 The Parties agree to associate for the limited purpose of developing, financing, constructing and operating the Venture, and for no other purpose. Nothing in this Agreement constitutes either Party the agent of the other, save as expressly provided.

2.2 Each Party shall contribute the capital, assets and personnel set out against its name in Schedule C, at the times and in the proportions there stated, and shall keep the other Party informed of any material change in its ability to do so.

ARTICLE III - GOVERNANCE

3.1 The Venture shall be managed by a Management Committee comprising an equal number of representatives appointed by each Party. The Management Committee shall meet not less than quarterly and shall keep minutes of its proceedings.

3.2 Reserved Matters listed in Schedule D require the unanimous approval of the Management Committee. All other matters may be decided by simple majority, and in the event of deadlock the escalation procedure in Article XX applies.

ARTICLE IV - OPERATING STANDARDS

4.1 The Venture shall be operated in accordance with good industry practice, all applicable law, and the operating manual adopted by the Management Committee from time to time.

4.2 Each Party shall procure that its personnel seconded to the Venture observe the health, safety and environmental standards adopted under Section 4.1, and shall promptly report any material breach of them to the Management Committee.

ARTICLE V - FINANCIAL PROVISIONS

5.1 The Venture shall maintain books and records in accordance with the accounting policies set out in Schedule E, and shall deliver audited accounts to each Party within ninety days of each financial year end.

5.2 Distributions shall be made in the proportions set out in Schedule C, after provision for working capital, committed capital expenditure and any reserve the Management Committee reasonably determines.

ARTICLE VI - REPORTING AND DISCLOSURE

6.1 Each Party shall provide the other with such information concerning the Venture as it may reasonably require in order to comply with its own statutory, regulatory and listing obligations.

6.2 Neither Party shall make any public statement concerning the Venture without the prior written consent of the other, except where disclosure is required by law or by a competent regulator.

ARTICLE VII - CONSENTS AND AUTHORISATIONS

7.1 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

7.2 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

7.3 The Parties shall keep confidential all information disclosed by the other in connection with the Venture, save for information which is or becomes public through no breach of this Agreement or which must be disclosed by law.

ARTICLE VIII - ASSIGNMENT

8.1 Each Party warrants that it has full power and authority to enter into this Agreement and that doing so does not conflict with any other obligation, instrument or arrangement to which it is a party.

8.2 The Venture shall maintain insurance with reputable insurers on terms consistent with good industry practice, and shall name each Party as an additional insured to the extent that its interest requires.

8.3 No delay or failure by either Party in exercising any right under this Agreement operates as a waiver of that right, and no single exercise of any right precludes any further exercise of it.

ARTICLE IX - NOTICES

9.1 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be severed and the remainder shall continue in full force, provided the commercial intent of the Parties is preserved.

9.2 The Parties shall review the operating budget annually and shall agree any variation in writing, failing which the previous budget continues to apply adjusted for inflation by reference to the index named in Schedule E.

9.3 Each Party shall comply with all applicable anti-bribery, sanctions and anti-money-laundering laws, and shall maintain records sufficient to demonstrate that compliance for a period of not less than six years.

ARTICLE X - CONFIDENTIALITY

10.1 Each Party shall at its own cost obtain and maintain in force all consents, licences and permits required for the performance of its obligations, and shall provide copies to the other Party promptly on request.

10.2 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

10.3 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

ARTICLE XI - REPRESENTATIONS AND WARRANTIES

11.1 The Parties shall keep confidential all information disclosed by the other in connection with the Venture, save for information which is or becomes public through no breach of this Agreement or which must be disclosed by law.

11.2 Each Party warrants that it has full power and authority to enter into this Agreement and that doing so does not conflict with any other obligation, instrument or arrangement to which it is a party.

11.3 The Venture shall maintain insurance with reputable insurers on terms consistent with good industry practice, and shall name each Party as an additional insured to the extent that its interest requires.

ARTICLE XII - INSURANCE

12.1 No delay or failure by either Party in exercising any right under this Agreement operates as a waiver of that right, and no single exercise of any right precludes any further exercise of it.

12.2 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be severed and the remainder shall continue in full force, provided the commercial intent of the Parties is preserved.

12.3 The Parties shall review the operating budget annually and shall agree any variation in writing, failing which the previous budget continues to apply adjusted for inflation by reference to the index named in Schedule E.

ARTICLE XIII - WAIVER

13.1 Each Party shall comply with all applicable anti-bribery, sanctions and anti-money-laundering laws, and shall maintain records sufficient to demonstrate that compliance for a period of not less than six years.

13.2 Each Party shall at its own cost obtain and maintain in force all consents, licences and permits required for the performance of its obligations, and shall provide copies to the other Party promptly on request.

13.3 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

ARTICLE XIV - SEVERANCE

14.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

14.2 The Parties shall keep confidential all information disclosed by the other in connection with the Venture, save for information which is or becomes public through no breach of this Agreement or which must be disclosed by law.

14.3 Each Party warrants that it has full power and authority to enter into this Agreement and that doing so does not conflict with any other obligation, instrument or arrangement to which it is a party.

ARTICLE XV - BUDGETS AND VARIATION

15.1 The Venture shall maintain insurance with reputable insurers on terms consistent with good industry practice, and shall name each Party as an additional insured to the extent that its interest requires.

15.2 No delay or failure by either Party in exercising any right under this Agreement operates as a waiver of that right, and no single exercise of any right precludes any further exercise of it.

15.3 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be severed and the remainder shall continue in full force, provided the commercial intent of the Parties is preserved.

ARTICLE XVI - REGULATORY COMPLIANCE

16.1 The Parties shall review the operating budget annually and shall agree any variation in writing, failing which the previous budget continues to apply adjusted for inflation by reference to the index named in Schedule E.

16.2 Each Party shall comply with all applicable anti-bribery, sanctions and anti-money-laundering laws, and shall maintain records sufficient to demonstrate that compliance for a period of not less than six years.

16.3 Each Party shall at its own cost obtain and maintain in force all consents, licences and permits required for the performance of its obligations, and shall provide copies to the other Party

promptly on request.

ARTICLE XVII - BOOKS AND RECORDS

17.1 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

17.2 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

17.3 The Parties shall keep confidential all information disclosed by the other in connection with the Venture, save for information which is or becomes public through no breach of this Agreement or which must be disclosed by law.

ARTICLE XVIII - AUDIT RIGHTS

18.1 Each Party warrants that it has full power and authority to enter into this Agreement and that doing so does not conflict with any other obligation, instrument or arrangement to which it is a party.

18.2 The Venture shall maintain insurance with reputable insurers on terms consistent with good industry practice, and shall name each Party as an additional insured to the extent that its interest requires.

18.3 No delay or failure by either Party in exercising any right under this Agreement operates as a waiver of that right, and no single exercise of any right precludes any further exercise of it.

ARTICLE XIX - SUBCONTRACTING

19.1 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be severed and the remainder shall continue in full force, provided the commercial intent of the Parties is preserved.

19.2 The Parties shall review the operating budget annually and shall agree any variation in writing, failing which the previous budget continues to apply adjusted for inflation by reference to the index named in Schedule E.

19.3 Each Party shall comply with all applicable anti-bribery, sanctions and anti-money-laundering laws, and shall maintain records sufficient to demonstrate that compliance for a period of not less than six years.

ARTICLE XX - FORCE MAJEURE

20.1 Each Party shall at its own cost obtain and maintain in force all consents, licences and permits required for the performance of its obligations, and shall provide copies to the other Party promptly on request.

20.2 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be

unreasonably withheld or delayed.

20.3 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

ARTICLE XXI - ENVIRONMENTAL MATTERS

Section 14.1 (Environmental Indemnity): The parties agree that for all accounting, liability, and regulatory reporting purposes under this venture, 'Operational Net-Zero' shall be defined exclusively as the mitigation of Scope 1 and Scope 2 emissions. Neither party shall bear financial or operational accountability for downstream Scope 3 product combustion emissions.

ARTICLE XXII - CONSENTS AND AUTHORISATIONS

22.1 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

22.2 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

22.3 The Parties shall keep confidential all information disclosed by the other in connection with the Venture, save for information which is or becomes public through no breach of this Agreement or which must be disclosed by law.

ARTICLE XXIII - ASSIGNMENT

23.1 Each Party warrants that it has full power and authority to enter into this Agreement and that doing so does not conflict with any other obligation, instrument or arrangement to which it is a party.

23.2 The Venture shall maintain insurance with reputable insurers on terms consistent with good industry practice, and shall name each Party as an additional insured to the extent that its interest requires.

23.3 No delay or failure by either Party in exercising any right under this Agreement operates as a waiver of that right, and no single exercise of any right precludes any further exercise of it.

ARTICLE XXIV - NOTICES

24.1 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be severed and the remainder shall continue in full force, provided the commercial intent of the Parties is preserved.

24.2 The Parties shall review the operating budget annually and shall agree any variation in writing, failing which the previous budget continues to apply adjusted for inflation by reference to the index named in Schedule E.

24.3 Each Party shall comply with all applicable anti-bribery, sanctions and

anti-money-laundering laws, and shall maintain records sufficient to demonstrate that compliance for a period of not less than six years.

ARTICLE XXV - CONFIDENTIALITY

25.1 Each Party shall at its own cost obtain and maintain in force all consents, licences and permits required for the performance of its obligations, and shall provide copies to the other Party promptly on request.

25.2 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

25.3 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

ARTICLE XXVI - REPRESENTATIONS AND WARRANTIES

26.1 The Parties shall keep confidential all information disclosed by the other in connection with the Venture, save for information which is or becomes public through no breach of this Agreement or which must be disclosed by law.

26.2 Each Party warrants that it has full power and authority to enter into this Agreement and that doing so does not conflict with any other obligation, instrument or arrangement to which it is a party.

26.3 The Venture shall maintain insurance with reputable insurers on terms consistent with good industry practice, and shall name each Party as an additional insured to the extent that its interest requires.

ARTICLE XXVII - INSURANCE

27.1 No delay or failure by either Party in exercising any right under this Agreement operates as a waiver of that right, and no single exercise of any right precludes any further exercise of it.

27.2 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be severed and the remainder shall continue in full force, provided the commercial intent of the Parties is preserved.

27.3 The Parties shall review the operating budget annually and shall agree any variation in writing, failing which the previous budget continues to apply adjusted for inflation by reference to the index named in Schedule E.

ARTICLE XXVIII - WAIVER

28.1 Each Party shall comply with all applicable anti-bribery, sanctions and anti-money-laundering laws, and shall maintain records sufficient to demonstrate that compliance for a period of not less than six years.

28.2 Each Party shall at its own cost obtain and maintain in force all consents, licences and

permits required for the performance of its obligations, and shall provide copies to the other Party promptly on request.

28.3 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

ARTICLE XXIX - SEVERANCE

29.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

29.2 The Parties shall keep confidential all information disclosed by the other in connection with the Venture, save for information which is or becomes public through no breach of this Agreement or which must be disclosed by law.

29.3 Each Party warrants that it has full power and authority to enter into this Agreement and that doing so does not conflict with any other obligation, instrument or arrangement to which it is a party.

ARTICLE XXX - BUDGETS AND VARIATION

30.1 The Venture shall maintain insurance with reputable insurers on terms consistent with good industry practice, and shall name each Party as an additional insured to the extent that its interest requires.

30.2 No delay or failure by either Party in exercising any right under this Agreement operates as a waiver of that right, and no single exercise of any right precludes any further exercise of it.

30.3 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be severed and the remainder shall continue in full force, provided the commercial intent of the Parties is preserved.

ARTICLE XXXI - REGULATORY COMPLIANCE

31.1 The Parties shall review the operating budget annually and shall agree any variation in writing, failing which the previous budget continues to apply adjusted for inflation by reference to the index named in Schedule E.

31.2 Each Party shall comply with all applicable anti-bribery, sanctions and anti-money-laundering laws, and shall maintain records sufficient to demonstrate that compliance for a period of not less than six years.

31.3 Each Party shall at its own cost obtain and maintain in force all consents, licences and permits required for the performance of its obligations, and shall provide copies to the other Party promptly on request.

ARTICLE XXXII - BOOKS AND RECORDS

32.1 Neither Party shall assign, novate or otherwise transfer any of its rights or obligations under

this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed.

32.2 Any notice given under this Agreement shall be in writing and shall be delivered by hand, by prepaid recorded delivery, or by electronic mail to the address most recently notified in writing by the receiving Party.

32.3 The Parties shall keep confidential all information disclosed by the other in connection with the Venture, save for information which is or becomes public through no breach of this Agreement or which must be disclosed by law.

ARTICLE XXXIII - AUDIT RIGHTS

33.1 Each Party warrants that it has full power and authority to enter into this Agreement and that doing so does not conflict with any other obligation, instrument or arrangement to which it is a party.

33.2 The Venture shall maintain insurance with reputable insurers on terms consistent with good industry practice, and shall name each Party as an additional insured to the extent that its interest requires.

33.3 No delay or failure by either Party in exercising any right under this Agreement operates as a waiver of that right, and no single exercise of any right precludes any further exercise of it.

ARTICLE XV - TERM AND TERMINATION

15.1 This Agreement takes effect on the date of the last signature and continues until terminated in accordance with this Article, or until the Venture is wound up under Article XVIII.

ARTICLE XVI - GENERAL

16.1 This Agreement constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior negotiations and understandings, whether written or oral.

16.2 No variation of this Agreement is effective unless it is in writing and signed by an authorised representative of each Party.